

14 GEO. 6

*Merchants House of Glasgow
(Crematorium) Order Confirmation Act, 1950*

Ch. xxvi



CHAPTER xxvi

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Merchants House of Glasgow (Crematorium).

[28th July 1950.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation 26 Geo. 5. & Procedure (Scotland) Act 1936 and it is requisite that the said 1 Edw. 8. c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Merchants House of Glasgow (Crematorium) Order Confirmation Act 1950.

Short title.

SCHEDULE

MERCHANTS HOUSE OF GLASGOW
(CREMATORIUM)

Provisional Order to authorise the Merchants House of Glasgow to provide maintain and carry on a crematorium in the Glasgow Necropolis and for other purposes

WHEREAS the Merchants House of Glasgow (hereinafter called "the Merchants House") one of the most important and ancient benevolent institutions in the west of Scotland known to have been in existence in the year one thousand six hundred and five instituted in the year one thousand eight hundred and thirty-three on lands belonging to them in the city of Glasgow the cemetery known as the Glasgow Necropolis and the said cemetery still belongs to and is maintained and carried on by the Merchants House:

And whereas the city of Glasgow has a population of over one million inhabitants and there is at present only one crematorium in the said city and the provision of a further crematorium would be of public and local advantage:

And whereas the Merchants House which is closely identified with the civic life of the said city and the west of Scotland is willing and able to provide maintain and carry on a crematorium and there is in the said Glasgow Necropolis which is centrally situated in the said city a site suitable for the erection of a crematorium:

And whereas it is expedient to authorise the Merchants House to provide maintain and carry on a crematorium and for this purpose to utilise the said site in the said Glasgow Necropolis and that the further provisions contained in this Order should be enacted:

26 Geo. 5. &
1 Edw. 8. c. 52.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary of State confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title and
commencement
of Order.

1. This Order may be cited as the Merchants House of Glasgow (Crematorium) Order 1950 and shall come into operation on the date of the passing of the Act confirming the same.

Interpretation.

2. In this Order unless there is something in the subject or context repugnant to such construction the following expressions have the meanings hereby assigned to them (that is to say):—

2 Edw. 7. c. 8.

"Act of 1902" means the Cremation Act 1902;

"crematorium" means any building fitted with appliances for the purpose of burning human remains and includes everything incidental or ancillary thereto;

"the Merchants House" means the incorporation known as the Merchants House of Glasgow.

3.—(1) The Merchants House may on the lands described in the schedule to this Order set apart a site for and build provide fit up equip maintain and carry on a crematorium (hereinafter in this section referred to as “the crematorium”) proper and sufficient for the cremation of human remains. Power to establish crematorium.

(2) The Merchants House may erect build and carry on adjoining or in connection with the crematorium convenient and suitable chapels for the reception of the dead immediately before cremation and for the purpose of performing burial services therein together with such lodges porches gardens colonnades columbaria or niches for the disposal of ashes and other buildings matters and things for such purposes as the Merchants House may think proper.

(3) (a) Cremation of human remains shall not take place in the crematorium until the plans and site thereof have been approved by the Secretary of State and the Merchants House shall have certified to the Secretary of State that the crematorium has been completed and built in accordance with such plans and is properly equipped for the purpose of the disposal of human remains by cremation.

(b) Every cremation of human remains in the crematorium shall take place in accordance with the provisions of sections 7 and 8 of the Act of 1902 and any regulations made and in force under the Act of 1902 and those sections shall apply accordingly as though they were included in this Order with all necessary modifications.

(4) Section 5 of the Act of 1902 shall not apply in respect of the crematorium.

(5) The Merchants House may demand and take such reasonable charges or fees for the cremation of any human remains in the crematorium as they think fit and such charges or fees shall be deemed to be part of the funeral expenses of the deceased.

(6) The Merchants House may apply to the purposes of this Order any funds or moneys which they now have or may hereafter have in their hands and which may not be specifically designated for any particular object.

4. Nothing in this Order shall derogate from the powers of the corporation of the city of Glasgow under the Town and Country Planning (Scotland) Act 1947 as planning authority for the city of Glasgow. For protection of Glasgow Corporation.
10 & 11 Geo. 6.
c. 53.

5. All costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Merchants House. Costs of Order.

THE SCHEDULE

(Referred to in the section of this Order of which the marginal note is "Power to establish crematorium")

DESCRIPTION OF LANDS FOR CREMATORIUM

All and whole that triangular plot or area of ground extending to one thousand six hundred square yards or thereby imperial standard measure part of the Glasgow Necropolis and situated in the parish of Glasgow and county of Lanark bounded as follows videlicet Commencing at a point situated one hundred and thirteen feet northwards from the southern boundary of the said necropolis on a line at right angles to and intersecting the said southern boundary at a point five hundred and two feet westwards from the south-east corner of the said necropolis measuring along the said southern boundary on the west south-west north and south-east by east by other parts of the said Glasgow Necropolis along which it extends respectively one hundred and thirty-five feet or thereby two hundred and eleven feet or thereby following a curve and one hundred and forty-seven feet six inches or thereby.

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